

WHAT TO DO AFTER A CAR ACCIDENT **IN ILLINOIS**

*The first ten minutes, the first ten days, and the two-year
clock that decides whether you ever get paid.*

APPLIES TO

**ALL 102 IL
COUNTIES**

COVERS

**SCENE ·
INSURANCE ·
DEADLINES**

FILING WINDOW

**2 YRS INJURY / 5
YRS PROPERTY**

FORMAT

**READ +
GLOVEBOX CARD**



BEFORE YOU START

HOW TO USE THIS GUIDE

This guide is built to be read twice: once now, calmly, so the steps are already familiar if you're ever in a crash — and once immediately after an accident, when you need fast answers instead of a legal textbook. Each section is short on purpose. The last page is a tear-style quick-reference card meant to live in your glovebox or your phone's photo roll.

WHAT THIS GUIDE IS

A plain-English explanation of Illinois traffic-accident law and practical steps for protecting a claim, written for drivers — not a substitute for reviewing your specific facts with a licensed attorney.

WHAT THIS GUIDE IS NOT

This is educational material, not legal advice, and reading it does not create an attorney-client relationship with the author. Insurance and injury cases turn on specific facts — the color of a traffic signal, a half-second of dashcam footage, a single line in a medical chart. Illinois law also changes. Before you rely on any deadline in this guide for a real claim, confirm it applies to your situation, since exceptions exist for minors, government defendants, and cases involving a death.

Throughout the guide, statute citations appear in `this typeface` so you can look up the exact language yourself at ilga.gov, or hand the citation to an attorney to save time on your first call.



SECURE THE SCENE FIRST

Nothing else on this list matters if someone gets hurt by passing traffic while you're standing in a live lane. Work through these in order:

1. **Stop.** Illinois law requires every driver involved in a crash to stop at the scene. Leaving before this checklist is done is a criminal offense, not just bad practice — a Class A misdemeanor for property-only crashes, a Class 4 felony if anyone was hurt or killed (625 ILCS 5/11-401, 5/11-402).
2. **Check for injuries** before you check for damage. If anyone is hurt, unconscious, or unsure how they feel, treat it as an injury until a paramedic says otherwise — adrenaline hides pain well.
3. **Move vehicles only if they're drivable and blocking traffic.** If someone is injured, or a vehicle won't move safely, leave it and get people away from traffic instead.
4. **Call 911** any time there's an injury, a death, or damage that looks like it could run over roughly \$1,500 combined. Even under that line, calling is rarely the wrong call — see the box below.
5. **Turn on hazards** and set up flares or triangles if you have them, especially on a highway shoulder or at night.

WHY CALL EVEN WHEN IT'S "MINOR"

Illinois no longer requires drivers to file a separate written report — police handle that now. But you're still required to notify law enforcement when injury, death, or property damage above roughly \$1,500 (\$500 if any driver is uninsured) is involved (625 ILCS 5/11-407). More importantly: without an officer on scene, there's no independent record of what happened, and "he said, she said" almost always favors whichever insurer wants to pay less.

If you're hospitalized and can't call from the scene, Illinois gives you a narrow window — roughly 30 minutes after discharge — to notify police yourself. If you can't, a passenger can do it for you.

DOCUMENT LIKE THE CASE DEPENDS ON IT

Because it might. Insurance adjusters and, eventually, juries decide fault largely from whatever exists on paper and in pixels. Memories fade in days; a photo doesn't.

- **Photograph everything** before vehicles are moved if it's safe to do so: all vehicles from four angles, license plates, skid marks, debris field, traffic signals and signage, road conditions, and any visible injuries.
- **Exchange information** with every other driver: name, address, phone number, driver's license number, license plate, and insurance company and policy number. Illinois requires this exchange by law, not just custom.
- **Get witness contact information** — name and phone number, minimum — before they drive off. Independent witnesses carry real weight precisely because they have nothing at stake.
- **Note the exact time, weather, and lighting.** A discrepancy here is one of the first things an adjuster checks against the police report.
- **Ask for the responding officer's name and badge number** and get the report number before they leave, so you're not chasing it down later.
- **Say only what's necessary.** Give your name, license, and insurance information. You don't owe the other driver — or their insurer, if they call later — a narrated explanation of what happened. "I'm still finding out the extent of everything" is a complete, true answer.

A NOTE ON APOLOGIES

"Sorry" said reflexively at a stressful moment gets quoted in insurance files as an admission of fault. You can be human and compassionate toward someone who's shaken up without narrating who caused what.

ILLINOIS IS A FAULT STATE — HERE'S WHAT THAT MEANS

Unlike no-fault states, Illinois requires the driver who caused the crash to pay for the resulting losses. That sounds simple, but almost every real crash involves some argument about who did what — and Illinois has a specific rule for splitting the difference.

THE 51% BAR — MODIFIED COMPARATIVE NEGLIGENCE

You can still recover damages even if you were partly at fault, as long as you were 50% or less responsible. Your recovery is reduced by your percentage of fault. Cross the 51% line and you recover nothing (735 ILCS 5/2-1116).

Example: A jury values your total damages at \$100,000. You were found 30% at fault (say, for a late brake response) and the other driver 70% at fault (an unsafe left turn). You recover 70% of \$100,000 — \$70,000. If the numbers had flipped and you were found 51% at fault, you'd recover nothing, regardless of how badly you were hurt.

This is precisely why insurance adjusters spend so much energy trying to shift even 10–15 points of fault onto you — every point is real money. It's also why the documentation in Section 2 matters more than it seems to in the moment: it's evidence for exactly this argument.



INSURANCE: WHAT ILLINOIS REQUIRES, WHAT ADJUSTERS DO

Every Illinois driver is required to carry at least the following liability coverage (625 ILCS 5/7-601):

COVERAGE	MINIMUM REQUIRED
Bodily injury, per person	\$25,000
Bodily injury, per accident	\$50,000
Property damage	\$20,000

Those minimums are low relative to a serious injury's real cost, which is exactly why **underinsured motorist (UIM) coverage** on your own policy matters — it fills the gap when the at-fault driver's insurance runs out before your medical bills do. Check your own declarations page; don't assume you have it.

RECORDED STATEMENTS

The other driver's insurer may call within days asking to "get your side on a quick recorded statement." You're not legally required to give one to their company, and there's rarely an upside to you. It's fine to say: "I'll have my attorney or myself follow up with a written statement" and take their name and claim number.

THE FAST, LOW OFFER

A quick settlement check offered before you know the full extent of your injuries is a release of all future claims — including injuries that surface later, like soft-tissue damage that gets worse over the following weeks. Once cashed, that door is generally closed for good.

Report the accident to *your own* insurer promptly regardless of fault — most policies require notice within a reasonable window (often 24–72 hours), and failing to notify can jeopardize your own coverage, including UM/UIM and medical payments benefits.



MEDICAL TREATMENT IS ALSO DOCUMENTATION

Adjusters and defense attorneys read gaps in medical treatment as evidence that an injury wasn't serious — even when the real reason was a busy week, a missed copay, or pain that seemed to fade before it didn't.

- **Get evaluated promptly**, even if you feel "mostly fine." Some soft-tissue and concussion symptoms take 24–72 hours to fully present.
- **Follow through on referrals** — physical therapy, imaging, specialists. A gap between visits becomes a talking point later, regardless of the real reason for it.
- **Describe symptoms consistently and specifically** to every provider: what hurts, when, and what makes it worse. Vague or inconsistent descriptions across visits get flagged.
- **Keep every bill, every receipt, and every note** excusing you from work — these become the backbone of a damages calculation, not just proof you went to the doctor.
- **Track how the injury affects daily life** in a simple running note: missed workouts, help needed with childcare, sleep disruption. This is exactly the kind of detail that's impossible to reconstruct accurately six months later.



THE CLOCK IS RUNNING

More valid Illinois injury claims are lost to missed deadlines than to weak facts. Courts enforce these dates without sympathy for how the client's year went.

CLAIM TYPE	ILLINOIS DEADLINE
Personal injury (most car accidents)	2 years from the date of the crash (735 ILCS 5/13-202)
Property damage only	5 years from the date of the crash (735 ILCS 5/13-205)
Wrongful death	2 years from the date of death
Claim against a government entity or vehicle	As short as 1 year, with a separate written-notice requirement — often due within months, not years (745 ILCS 10/8-101, 8-102)
Injured minor (under 18)	Clock generally doesn't start until their 18th birthday

THE GOVERNMENT-ENTITY TRAP

If a municipal vehicle, a transit bus, or a road defect on public property was involved, the notice deadline can be dramatically shorter than the standard two years — and missing it can bar the claim entirely, independent of the statute of limitations. If a government vehicle or property is anywhere near the facts of your crash, treat the clock as already running today, not "eventually."

The two-year clock runs from the date of the crash — not the date you finish treatment, not the date negotiations stall. Waiting to "see how things go" before consulting anyone is the single most common way a valid claim quietly expires.



TEN MISTAKES THAT QUIETLY COST MONEY

1. Apologizing or speculating about fault at the scene.
2. Not calling police for a crash that "seemed minor" but crossed the damage threshold.
3. Skipping photos because "the police report will cover it."
4. Giving a recorded statement to the other driver's insurer before talking to anyone else.
5. Posting about the accident, injuries, or activities on social media while a claim is open.
6. Accepting the first settlement offer before finishing treatment.
7. Letting gaps open up between medical appointments.
8. Assuming "no police report" means "no claim" — it doesn't.
9. Forgetting to check your own policy for UM/UIM coverage before assuming you're out of options.
10. Waiting to see how you feel before looking into the statute of limitations — especially with any government vehicle or property involved.

WHEN YOU PROBABLY NEED A LAWYER — AND WHEN YOU MIGHT NOT

CONSIDER HANDLING IT YOURSELF

Minor, clearly one-sided property damage. No injuries, or injuries that resolved after a single urgent-care visit. Insurer accepted fault quickly and the offer covers your actual bills and losses in full.

TALK TO A LAWYER FIRST

Any real injury, especially anything requiring ongoing treatment. Fault is disputed. A government vehicle or entity is involved. The other side is uninsured or underinsured. The insurer is slow-walking, lowballing, or asking for a recorded statement.

Most personal injury attorneys — including this guide's author — offer a free initial consultation and work on contingency, meaning there's no fee unless you recover money. The cost of a fifteen-minute call is usually nothing; the cost of guessing wrong about a deadline or a low settlement can be everything the case was worth.



KEEP THIS WHERE YOU'LL ACTUALLY FIND IT

THE GLOVEBOX CARD

AT THE SCENE

DO THESE IN ORDER, BEFORE YOU DO ANYTHING ELSE

- ☐ Stop the vehicle. Check for injuries first, damage second.
- ☐ Call 911 if anyone is hurt, or damage looks significant.
- ☐ Photograph all vehicles, plates, road, signals, and injuries.
- ☐ Exchange name, phone, license #, plate, and insurance info.
- ☐ Get witness names and phone numbers before they leave.
- ☐ Get the officer's name, badge #, and report number.
- ☐ Say only what's necessary. No apologies, no guesses about fault.
- ☐ See a doctor within 24–72 hours, even if you feel okay.

Other Driver

Name: _____

Phone: _____

Plate: _____

Insurer / Policy #: _____

Report Details

Officer / Badge #: _____

Report #: _____

Witness: _____

Witness Phone: _____